

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
JUDGE R. BROOKE JACKSON

Civil Action: 20-cv-00076-RBJ
Courtroom Deputy: Julie Dynes

Date: September 30, 2021
Court Reporter: Sarah Mitchell

Parties

Counsel

ANITA MARTIN

Anne Sulton
William Sulton

Plaintiff

v.

PUBLIC SERVICE COMPANY OF COLORADO

Meghan Martinez
Sarah Nolan

Defendant

COURTROOM MINUTES

JURY TRIAL DAY FOUR

Court in Session: 9:07 a.m.

Jury not present.

Discussion held on rebuttal witness.

Jury escorted in.

Defense witness, Kevin Joyce, called and sworn.

9:18 a.m. Direct examination of Mr. Joyce by Ms. Martinez.
Exhibits 6, Y, CC, EE and VVV are admitted.

9:38 a.m. Cross examination of Mr. Joyce by Ms. Sulton.
Exhibit AA is admitted.

Defense rests.

Plaintiff's witness, Phyllis Berti, called and sworn.

10:01 a.m. Direct examination of Ms. Bertie by Ms. Sulton.

10:02 a.m. Cross examination of Ms. Bertie by Ms. Martinez.

10:06 a.m. Redirect examination of Ms. Bertie by Ms. Sulton.

ORDERED: Evidence is closed.

Jury instructed.

10:54 a.m. Court in recess – jury escorted out.

11:09 a.m. Court in session - jury escorted in.

11:11 a.m. Closing argument by Mr. Sulton.

11:33 a.m. Closing argument by Ms. Martinez.

12:04 p.m. Rebuttal closing argument by Mr. Sulton.

Bailiff sworn. Jury to begin deliberations.

12:30 p.m. Court in recess.

2:03 p.m. Court in session – jury escorted in.

Verdict reached. Verdict found in favor of the defendant, see verdict for details.

Jury excused.

Court in Recess: 2:11 p.m.

Trial concluded.

Total time in Court: 03:16

Clerk's note: Exhibits returned to counsel or a representative of counsel. Counsel to retain exhibits until such time as all need for the exhibits has terminated and the time to appeal has expired or all appellate proceedings have been terminated plus sixty days.